

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 22-23

MARINE TRANSPORT LOGISTICS, INC. v. CMA CGM (AMERICA) LLC

**JOINT MOTION FOR SUBSTITUTION OF RESPONDENTS
AND MODIFICATION OF DEADLINE FOR ANSWER**

Marine Transport Logistics, Inc. (“MTL” or “Complainant”), Respondent CMA CGM (America) LLC (“CCA”) and putative Respondent CMA CGM, S.A. (“CMA”) (collectively the “Parties”) have together agreed on a procedure by which this proceeding may progress without the flurry of jurisdictional motions that would otherwise ensue (as discussed below). To implement that agreement, the Parties hereby jointly move the Presiding Officer for an order allowing the substitution of CMA as Respondent in place of CCA and a modest modification of CMA’s deadline to Answer the Amended Complaint. The reasons supporting this motion are set forth below.

On December 8, 2022, the Presiding Officer requested the Federal Maritime Commission (“FMC” or “Commission”) Office of the Secretary to serve the Amended Complaint on CCA and CMA. The Secretary responded by emailing a copy of the Amended Complaint to CCA (on December 8, 2022) and by sending a copy via FedEx to CMA at its headquarters in France (on December 9, 2022).

Absent the Parties’ agreement reflected in this motion, both CMA and CCA would expect to file motions objecting to the exercise of FMC jurisdiction over them. CMA would authorize the undersigned to enter a special appearance limited to a challenge regarding the sufficiency service and would file a motion to dismiss on the basis that sending a FedEx to a foreign-based company is insufficient because it does not meet the requirements of *The Hague Convention on*

*the Service Abroad of Judicial and Extrajudicial Documents in Civil and Commercial Matters.*¹

CCA would file a motion making a factual (not facial) attack on subject matter jurisdiction over it, as CCA is not a common carrier and did not provide common carrier services to Complainant.

CMA and CCA believe that the foregoing motions are well-founded and likely to succeed (at least at some level of review). Complainant, of course, disagrees and would mount vigorous counterarguments. The point, however, is not who would win, but the substantial time it would take to resolve these jurisdictional issues.

The Parties have agreed on a way to pretermite this lengthy motions practice, while continuing to assure Complainant of all rights to discovery and relief to which it is entitled. This agreement, if adopted, would serve judicial economy, while also conserving the Parties' resources. In particular, the agreement provides that:

1. Complainant will voluntarily withdraw or agree to dismiss its Complaint with respect to CCA.²
2. Putative Respondent CMA agrees (for this proceeding only) to forego the formalities of the Hague Convention and make a general appearance.
3. CMA further agrees that, as the parent of its agent CCA, it will be liable for the actions of CCA and for any reparations or other relief that might be awarded by the FMC. It

¹ The Hague Convention requires all signatories to designate a "Central Authority" whose responsibility it is to accept requests of service from any other signatory nation. Nov. 15, 1965, 1969 U.S.T. LEXIS 152, 20 U.S.T. 361. Both the United States and France are signatories to the Hague Convention. See, e.g., *Jouanny v. Embassy of Fr.*, 220 F. Supp. 3d 34, 39, 2016 U.S. Dist. LEXIS 169022, *7-8.

² As no responsive filings have yet been made with respect to the Amended Complaint, it appears that Complainant could simply file a notice of voluntary withdrawal of the Amended Complaint in accordance with the Commission's Rules. 46 CFR 502.72(a)(1). Because the agreement contemplates multiple actions that must all be present in order to work (some of which require a motion), and out of an abundance caution, the Parties present the agreement in full herein.

further agrees to make available in discovery any information sought regarding actions by CCA (subject to otherwise appropriate defenses and objections that might have been raised by CCA).

4. The foregoing steps are premised and depend on a grant of this joint motion with respect to extension of CMA to answer until January 20, 2023.

The benefits of the agreement are evident. As already explained, it serves judicial economy by avoiding time-consuming motions, while conserving the Parties' resources and allowing the proceeding to move more quickly to the next stage. As evidenced by Complainant's joining in the motion, it does so without any prejudice to the ability of Complainant to seek either discovery or relief (another saving of resources). Implementation of the Parties' agreement is, however, contingent on an extension of the time for CMA to file an Answer until January 20, 2023. This extension is necessary in light of the following: (i) counsel were only recently authorized to represent CMA as well as CCA, (ii) the holiday season, which affects both principals of Jeffrey/Fenneman, and (iii) foreign travel by one of the principals from January 7 until January 14, 2023. We note that this modest extension will be significantly more than offset by adoption of the arrangement for substituting CMA as Respondent in lieu of CCA.

For the foregoing reasons, the Parties respectfully request that the Presiding Officer issue an Order authorizing the parties to implement the agreement as set forth above, and that the time for CMA's answer be extended to January 20, 2023.

DATED: December 27, 2022

Respectfully submitted,

s/ Garry Pogil

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CERTIFICATE OF SERVICE

I certify that on the 28th day of December, 2022, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020 as follows:

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